

SUMMARY CONSENT DECREE PROCESS

**for DIVORCE of a non-covenant
marriage WITHOUT MINOR
CHILDREN**

To get a Consent Decree when both parties agree

Forms and Instructions

Summary Consent Decree Process for divorce of non-covenant marriage with no minor children

Checklist

You may use the forms in this packet if . . .

- ✓ Both spouses want to get a divorce, AND,
- ✓ Both spouses agree to ALL the terms of the divorce and will work together to complete, sign and file the necessary papers, AND,
- ✓ You do not have a “covenant” marriage, (these papers will not work for a covenant marriage)* AND,
- ✓ Either spouse has lived in Arizona at least 90 days before you file the forms; or either spouse is a member of the armed forces and has been stationed in Arizona at least 90 days before you file; AND,
- ✓ You do not have minor child(ren) together AND,
- ✓ You believe that the marriage is irretrievably broken (you and your spouse cannot make this marriage work - AND,
- ✓ Either spouse has tried to resolve your marital problems through Conciliation Services, or there is no point in trying to resolve your marital problems.

*What is a “Covenant Marriage?” As of August 21, 1998, the Arizona Legislature created a type of marriage called “covenant” marriage. To have a covenant marriage, both spouses would have had to:

1. sign papers asking to have a covenant marriage; AND
2. attend pre-marital counseling; AND
3. the marriage license says it’s a “Covenant Marriage.”

If you were married before August 21, 1998 and have not signed papers to convert your marriage to a covenant marriage, you do not have a covenant marriage. If you still have questions about whether you have a covenant marriage, see a lawyer for help.

READ ME: Consulting a lawyer before filing documents with the court may help prevent unexpected results. A list of lawyers you may hire to advise you on handling your own case or to perform specific tasks can be found on the Law Library Resource Center website.

Summary Consent Decree Process for Divorce of a Non-Covenant Marriage without minor children

This packet contains court forms and instructions to file for a divorce by the summary consent decree process. Items in **bold** are forms that you will need to file with the Court. Non-bold items are instructions or procedures. Do not copy or file those pages!

Order	File Number	Title	# Pages
1	DRDSA1k	Checklist: You may use these forms if...	1
2	DRDSA1t	Table of Contents (this page)	2
3	DRDSA10i	Instructions: How to fill out papers for the summary consent decree for divorce or legal separation with no minor children	4
4	DRA71i	How to fill out the consent decree for divorce or legal separation in a non-covenant marriage with no minor children	2
5	DRDSA11p	Procedures: How to file papers for a summary consent decree for divorce or legal separation with no minor children	4
6	DRSDS10f-A	Family Department Sensitive Data Cover Sheet without children (2 copies - one for each party)	1
7	DR14f	Preliminary Injunction	3
8	DRDSC10f	Notice of Intent to File Consent Decree for Dissolution	1
9	DRDSC11f	Summary Consent Petition and Response for Dissolution	5
10	DRNOL70f	Notice of Lodging	2
11	DRA71f	Consent Decree (including Exhibit A)	15
12	DRD16f	Notice of Your Rights about Health Insurance Coverage	2
13	DR16f	Notice Regarding Creditors	3

The documents you have received are copyrighted by the Superior Court of Arizona in Maricopa County. You have permission to use them for any lawful purpose. These forms shall not be used to engage in the unauthorized practice of law. The Court assumes no responsibility and accepts no liability for actions taken by users of these documents, including reliance on their contents. The documents are under continual revision and are current only for the day they were received. It is strongly recommended that you verify on a regular basis that you have the most current documents.

DO NOT COPY OR
FILE THIS PAGE

Instructions: How to fill out papers for the summary consent decree for divorce or legal separation with no minor children

Domestic Violence: Domestic violence can be part of any marriage. Domestic violence includes physical violence such as hitting, slapping, pushing or kicking or threats of physical violence directed against you or verbal abuse used to control you.

Court documents request your address and phone number. If you are a victim of domestic violence, and you do not want your address to be known to protect yourself from further violence, you must file a “Request for Protected Address” and ask that your address not be disclosed on court papers. With that Order, you do not need to put your address and phone number on your divorce or legal separation papers. Just write “protected” in the space on the form where you are asked for this information. You must tell the Clerk of Superior Court your address and phone number as soon as possible so the court can get in touch with you. The court will keep your address protected.

General information about filling out forms: Type or print all forms in **black** ink.

- You must fill out the top left of the first page on every form. This tells the Court who is filing the document. This will be the Petitioner/Party A’s information, except when noted below.
- You will not have a Case Number. Leave the space blank for the Clerk of Superior Court to assign a new Case Number.
- Whomever is the “Petitioner/Party A” will remain the “Petitioner/Party A” throughout the whole case. This will never change.
- Whomever is the “Respondent/Party B” will remain the “Respondent/Party B” throughout the whole case. This will never change.

Complete the following forms:

- ✓ Family Department Sensitive Data / Cover Sheet
 - Both parties need to complete their own Cover Sheet.
 - The top left information is for the party filing the form.
 - No copies are needed; neither party will provide a copy to the other party. This form is information just for the Court.
- ✓ Preliminary Injunction
 - This document tells the parties things they cannot do until the Court enters the decree.

- ✓ Notice of Intent to File Summary Consent Decree for divorce or legal separation
 - Both parties sign and date the form.

- ✓ Summary Consent Decree Petition and Response
 - Numbers correspond to numbered paragraphs of sections on the form.
 - 1. Complete Party A's name, address, date of birth, job title and years/month lived in Arizona.
 - 2. Complete Party B's name, address, date of birth, job title and years/month lived in Arizona.
 - 3. Complete information about the marriage, including:
 - Date of marriage. If you do not know this information, and you were married in Maricopa County, you may get a copy of your marriage license from the Clerk of Superior Court (601 West Jackson Street, Phoenix; 222 East Javelina Avenue, Mesa; 14264 West Tierra Buena Lane, Surprise; and 18380 North 40th Street, Phoenix.) If you were married in another county in Arizona, go to the Clerk of Superior Court at the county seat where you were married.
 - City and State of marriage. If married outside the United States, indicate the Country where married.
 - Read the statements that follow the checkboxes. Check the box for each statement that is TRUE. If any statement is NOT true or if you fail to check the box to indicate the statement is true, your case may not proceed.
 - Check the first box to indicate that you do not have a "covenant" marriage. Read the Checklist in this packet for more information on covenant marriages.
 - Check the second box to indicate your marriage is irretrievably broken or you want to live separate and apart if applying for legal separation. "Irretrievably broken" means that your marriage is broken beyond repair and there is no chance of getting back together with your spouse.
 - Check the third box to indicate you and your spouse have attended a free conference with trained staff through the Court – or that it would not help.
 - Check the fourth box to show you have no minor children together.
 - Residency. At least one of the parties must be living in Arizona, or be stationed in Arizona in the armed services when the petition/response is filed. If filing for divorce, at least one of those parties must have lived in Arizona for 90 days before the petition/response is filed.

4. Statement and Waivers. These statements are necessary to proceed with the summary consent decree process.
 - a. This waiver means the Respondent will not require the Petitioner to formally serve them under Arizona law, and both parties agree that they have settled all issues in their divorce or legal separation.
 - b. This waiver means both parties understand they have a right to request free conciliation services to try to resolve issues to remain married. However, they choose not to use those services.
 - c. This waiver means both parties understand the Petitioner could proceed by default if a Petition was filed instead. Default is when the Petitioner makes requests of the Court and the Respondent chooses not to disagree and not file a response; the Petitioner can then apply to enter “default” and submit a Default Decree to make orders of the requests in the Petition. Some parties proceed by default to save money on the filing fee of the Response. Proceeding with the summary consent decree process means both parties will be required to pay a filing fee and will submit a Consent Decree for the Judge to sign into orders.
 - d. This statement means that when Respondent/Party B signs the Petition and Response form, it has the same effect as if the Respondent had been served a Summons. This means the Respondent will not need to be “served” with the divorce or legal separation papers.
 - e. This means the parties understand if they wish to withdraw their agreement, the party who no longer agrees must file a motion with the Court no later than 60 days after filing of the Petition and Response. If you change your mind, see the instructions and procedures and form for a “Motion to Withdraw Notice of Intent.”
 - f. This means the parties are filing the joint Petition and Response instead of filing separate Petition and Response forms.
5. Written Agreement. This is stating that the parties have reached an agreement and are submitting a Consent Decree attached to a Notice of Lodging for the Court’s review. The agreement tells the Court information about the case and what the parties are asking the Court to sign as an order.
6. Joint Requests to the Court.
 - a. Under this section, the parties are stating they wish the Court to grant their request for a divorce or legal separation.
 - b. This means the parties are asking the Court to enter orders as detailed in the Consent Decree.

7. Oath or affirmation and verification. Both parties are required to sign in front of a Clerk of Superior Court or a notary public. By doing so, you are telling the Court that everything contained in the Petition and Response is true, under penalty of perjury.

✓ Consent Decree

- See the separate instructions about how to fill out the Consent Decree.

✓ Notice of Your Rights About Health Insurance Coverage

- This is an important document that explains what to do about health care coverage for you. Read it carefully.
- A copy must go to the responding party.

✓ Notice Regarding Creditors

- This is an important document that tells both spouses that each is responsible for community debts to creditors even though the court order or decree says that only one of you are responsible. Read this notice to find out how to obtain information from your creditors about account balances.
- A copy must go to the responding party.

✓ Notice of Lodging

- Fill out the Notice of Lodging. Attach the documents listed in this packet's Procedures to the Notice of Lodging.

NEXT STEP: After you fill out all the forms in this packet, read the document called Procedures: How to file papers for a summary consent decree.

How to fill out the consent decree for divorce or legal separation in a non-covenant marriage with no minor children

Instructions for filling out the Consent Decree:

1. Top left: On the first page, fill in the information requested at top left for the person filing the Consent Decree and Respondent/Party B. Use the spaces marked “Representing” and “Lawyer’s Bar Number” only if an attorney is preparing this form.
2. Names: Fill in the names of the persons shown as “Petitioner/Party A” and “Respondent/Party B” and the case number as on the Petition.
3. Complete: Fill out the remaining parts of this Consent Decree according to you and your spouse’s agreements.
4. Meaning of signatures: When you and your spouse sign this Consent Decree, you state to the Court:
 - You have read, understand and agree with the contents of the Consent Decree.
 - You agree to all the terms stated in the Decree.
 - You are requesting the Court to make this document a Court Order that governs your divorce or legal separation.
5. Signatures:
 - Be prepared to show photo identification before signing this document.
 - Do not sign this Consent Decree until you are in front of a Clerk of Superior Court or a Notary Public.
 - Read carefully before you sign this Consent Decree.
 - You and your spouse may sign this Consent Decree only if you understand and agree to all the terms of the Decree.
 - Lawyer Signatures: If you or your spouse is represented by an attorney, the attorney must also sign.

Helpful Tips:

1. Be sure to include “EXHIBIT A” about property and debts as part of your decree.
2. Be sure to attach a quit claim deed, if a quit claim deed has been signed.

Other important papers in this packet:

Notice of Lodging

Fill out the Notice of Lodging. Attach the documents listed in this packet's Procedures to the Notice of Lodging.

See Procedures for next steps.

Wait: You must wait at least 60 days from the date the responding party was served or signed an Acceptance of Service form for the divorce or legal separation papers before you submit the Consent Decree. The judge cannot sign your decree until 60 days after the date of service or the date of acceptance of service (A.R.S. § 25-329. Waiting Period).

Do not copy
or file this page

Procedures: How to file papers for a summary consent decree for divorce or legal separation with no minor children

STEP 1. Both parties must complete their own Family Department Sensitive Data Coversheet. You do not need to make a copy of this document unless you want one for your records.

STEP 2. Make copies of the following documents after you have filled them out. You will need the following:

- Notice of Lodging – 1 original, 3 copies
- Preliminary Injunction – 1 original, 2 copies
- Notice of Intent to File Summary Consent Decree – 1 original, 3 copies
- Summary Consent Petition and Response – 1 original, 3 copies
- Consent Decree – 1 original, 3 copies
- Notice of Your Rights About Health Insurance Coverage – 1 original, 2 copies
- Notice Regarding Creditors – 1 original, 2 copies

*If you will eFile your forms, you may not need as many paper copies. You will need a paper set of the filed forms to serve on the other party, Division of Child Support Services if they are involved in your case, and one for your judge or Family Administration (when required). For more information about how to eFile your papers, read the eFiling instructions first:

<https://superiorcourt.maricopa.gov/media/7448/dref93i.pdf>.

STEP 3. Separate your documents into four (4) sets, as follows:

1. Take all sets to the Clerk of Superior Court. The Clerk will stamp the original and copies of the Notice of Lodging. The Clerk will keep Set 1, and return the Clerk-stamped copies of the Notice of Lodging and remaining sets to you.

Set 1: To file with Clerk of Superior Court

- ORIGINAL Notice of Lodging
Attach to Notice of Lodging:
 - COPY Consent Decree
- ORIGINAL Family Department Sensitive Data Cover Sheet (one from each Party)
- ORIGINAL Notice of Intent to File Summary Consent Decree
- ORIGINAL Summary Consent Petition and Response
- ORIGINAL Preliminary Injunction
- ORIGINAL Notice of Your Rights About Health Insurance Coverage
- ORIGINAL Notice Regarding Creditors

2. Prepare the remaining sets for the Judge.

Set 2: For the Judge

- COPY Notice of Lodging
Attach to Notice of Lodging:
 - ORIGINAL Consent Decree
- COPY Notice of Intent to File Consent Decree
- COPY Summary Consent Petition and Response

You must also provide 2 (two) 9" x 12" business envelopes, one stamped and addressed to each party.

Set 3: COPIES for Party A to keep after Clerk of Superior Court stamps the documents

- Notice of Lodging
- Consent Decree
- Notice of Intent to File Summary Consent Decree
- Summary Consent Petition and Response
- Preliminary Injunction
- Notice of Your Rights About Health Insurance Coverage
- Notice Regarding Creditors

Set 4: COPIES for Party B to keep after the Clerk of Superior Court stamps the documents

- Notice of Lodging
- Consent Decree
- Notice of Intent to File Summary Consent Decree
- Summary Consent Petition and Response
- Preliminary Injunction
- Notice of Your Rights About Health Insurance Coverage
- Notice Regarding Creditors

STEP 4. File the papers. Pay the fees. Request an extra copy of the receipt if you want one for your records.

Go to the Clerk of Superior Court filing counters at one of the following locations. The Court is open from 8:00 a.m.-5:00 p.m., Monday-Friday. You should go to the Court at least two hours before it closes.

Clerk of Superior Court
Central Court Building
201 West Jefferson, 1st floor
Phoenix, Arizona 85003

Clerk of Superior Court Southeast
Court Facility
222 East Javelina Avenue, 1st
floor Mesa, Arizona 85210

Clerk of Superior Court
Northwest Regional Court Center
14264 West Tierra Buena Lane
Surprise, Arizona 85374

Clerk of Superior Court Northeast
Regional Court Center 18380
North 40th Street
Phoenix, Arizona 85032

The filing fee is due at the time of filing. The total fee is currently \$331.50. The amount is subject to change without notice. A list of current fees is available from the Clerk of Superior Court's website (<http://www.clerkofcourt.maricopa.gov/>).

The Clerk accepts the following forms of payment:

- cash,
- money order,
- wire transfer,
- credit cards, and
- debit cards (run as a credit card transaction).
- business checks are accepted from law firms, process servicers, runner services, and certified document preparers, only when it's a clearly identified business check, imprinted with the firm's business address.

If you cannot afford the filing fee, you may request a deferral (payment plan) when you file your papers with the Clerk. Deferral Applications are available at no charge from the Law Library Resource Center and Clerk's office.

STEP 5. Deliver Sets 2, 3, and 4 to the Family Department window. Include two (2) pre-stamped large envelopes with sufficient postage, one addressed to each party. These will be used to mail the final documents to each party.

Central Court Building
201 West Jefferson, 3rd Floor
Phoenix, Arizona 85003

Southeast Court Facility
222 East Javelina Avenue 1st Floor
Mesa, Arizona 85210

Northwest Court Center
14264 West Tierra Buena Lane
Surprise, Arizona 85374

Northeast Court Center
18380 North 40th Street
Phoenix, Arizona 85032

STEP 6. There is a mandatory waiting period of 60 days from the date in which the documents are filed before a judge may enter the final decree. This is known as the “waiting period.”

STEP 7. Wait for your judge to review the paperwork. By law, the Consent Decree will be held until the end of the waiting period of at least 60 days from the date of filing has passed.

If the parties reconcile, wish to change their consent decree or other final orders, or no longer agree to terms of settlement, they must complete and file a motion or stipulation before the 60-day waiting period is up. Forms and instructions for these processes are available on the LLRC website at: <https://superiorcourt.maricopa.gov/llrc/drscd/>.

What happens next? It is within the Judge’s/Commissioner’s discretion whether to accept or reject the Decree, or to schedule a court hearing.

1. If your consent decree is accepted, the Judge/Commissioner will sign the original Decree and have it filed with the Clerk of Superior Court. The Court will send a copy of the signed Decree to each party using the envelopes you provided. This is your notification that your divorce or legal separation is now final. You are not divorced or legally separated until the Judge/Commissioner signs the Decree.
2. If your consent decree is rejected, the Court will send you a “Correction Notice” informing you of the mistakes with the documents. Follow the instructions on the “Correction Notice.” If the mistakes cannot be corrected, see a lawyer for help.
3. If the Judge/Commissioner schedules a hearing, the Court will send notice of a scheduled date, time, and location for a hearing which both parties must attend to answer any questions the Judge/Commissioner may have.

Person Filing: _____
Address (if not protected): _____
City, State, Zip Code: _____
Telephone: _____
Email Address: _____
ATLAS Number: _____
Lawyer's Bar Number: _____

FOR CLERK'S USE ONLY

Representing ☐ Self, without a Lawyer or ☐ Attorney for ☐ Petitioner OR ☐ Respondent

SUPERIOR COURT OF ARIZONA IN MARICOPA COUNTY

Petitioner / Party A

Case No. _____

ATLAS No. _____

Respondent / Party B

FAMILY DEPARTMENT SENSITIVE DATA COVERSHEET WITHOUT CHILDREN (CONFIDENTIAL RECORD)

Fill out. File with Clerk of Superior Court. Social Security Numbers should appear on this form only and should be omitted from other court forms. Access Confidential pursuant to ARFLP 43.1(f).

A. Personal Information:

Petitioner / Party A

Respondent / Party B

Name

Gender

Date of Birth (Month/Day/Year)

Social Security Number

☐ Male or ☐ Female

☐ Male or ☐ Female

**WARNING: DO NOT INCLUDE MAILING ADDRESS ON THIS FORM
IF REQUESTING ADDRESS PROTECTION**

Mailing Address

City, State, Zip Code

Contact Phone

Receive texts from Court to
contact phone number above?

☐ Yes ☐ No texts

☐ Yes ☐ No texts

Email Address

Current Employer Name

Employer Address

Employer City, State, Zip Code

Employer Telephone Number

Employer Fax Number

B. Type of Case being filed - Mark only one category. (*) Mark this box only if no other case type applies

☐ Dissolution (Divorce)

☐ Annulment

☐ Other*

☐ Legal Separation

☐ Order Protection

C. Do you need interpreter? ☐ No ☐ Yes If Yes, What language? _____

DO NOT COPY THIS DOCUMENT. DO NOT SERVE THIS DOCUMENT TO THE OTHER PARTY.

Person Filing: _____
Address (if not protected): _____
City, State, Zip Code: _____
Telephone: _____
Email Address: _____
ATLAS Number: _____
Lawyer's Bar Number: _____

FOR CLERK'S USE ONLY

Representing ☐ Self, without a Lawyer or ☐ Attorney for ☐ Petitioner OR ☐ Respondent

SUPERIOR COURT OF ARIZONA IN MARICOPA COUNTY

Petitioner / Party A

Case No. _____

ATLAS No. _____

Respondent / Party B

FAMILY DEPARTMENT SENSITIVE DATA COVERSHEET WITHOUT CHILDREN (CONFIDENTIAL RECORD)

Fill out. File with Clerk of Superior Court. Social Security Numbers should appear on this form only and should be omitted from other court forms. Access Confidential pursuant to ARFLP 43.1(f).

A. Personal Information:

Petitioner / Party A

Respondent / Party B

Name

Gender

Date of Birth (Month/Day/Year)

Social Security Number

☐ Male or ☐ Female

☐ Male or ☐ Female

**WARNING: DO NOT INCLUDE MAILING ADDRESS ON THIS FORM
IF REQUESTING ADDRESS PROTECTION**

Mailing Address

City, State, Zip Code

Contact Phone

Receive texts from Court to
contact phone number above?

☐ Yes ☐ No texts

☐ Yes ☐ No texts

Email Address

Current Employer Name

Employer Address

Employer City, State, Zip Code

Employer Telephone Number

Employer Fax Number

B. Type of Case being filed - Mark only one category. (*) Mark this box only if no other case type applies

☐ Dissolution (Divorce)

☐ Annulment

☐ Other*

☐ Legal Separation

☐ Order Protection

C. Do you need interpreter? ☐ No ☐ Yes If Yes, What language? _____

DO NOT COPY THIS DOCUMENT. DO NOT SERVE THIS DOCUMENT TO THE OTHER PARTY.

Person Filing: _____

Address (if not protected): _____

City, State, Zip Code: _____

Telephone: _____

Email Address: _____

ATLAS Number: _____

Lawyer's Bar Number: _____

Representing ☐ Self, without a Lawyer OR ☐ Attorney for ☐ Petitioner OR ☐ Respondent

SUPERIOR COURT OF ARIZONA
IN MARICOPA COUNTY

Name of Petitioner/Party A

Case Number: _____

AND

PRELIMINARY INJUNCTION

Name of Respondent/Party B

Warning: This is an official Order from the court. It affects your rights. Read this Order immediately and carefully. If you do not understand it, contact a lawyer for help.

Your spouse has filed a Petition for Dissolution (Divorce) or Petition for Annulment or Petition for Legal Separation with the court. This Order is made at the direction of the Presiding Judge of the Superior Court of Arizona in Maricopa County. This Order has the same force and effect as any order signed by the judge. You and your spouse must obey this Order. This Order may be enforced by any remedy available under the law, including an Order of Contempt of Court. To help you understand this Order, we have provided this explanation. Read the explanation and then read the statute itself. If you have any questions, you should contact a lawyer for help.

EXPLANATION: (What does this Order mean to you?)

1. **ACTIONS FORBIDDEN BY THIS ORDER:** From the time the Petition for Dissolution (Divorce) or Petition for Annulment or Petition for Legal Separation is filed with the court, until the judge signs the Decree, or until further order of the court, both the Petitioner and the Respondent shall not do any of the following things:

- ✓ You may not hide earnings or community property from your spouse, AND
- ✓ You may not take out a loan on the community property, AND

- ✓ You may not sell the community property or give it away to someone, UNLESS you have the written permission of your spouse or written permission from the court. The law allows for situations in which you may need to transfer joint or community property as part of the everyday running of a business, or if the sale of community property is necessary to meet necessities of life, such as food, shelter, or clothing, or court fees and attorney fees associated with this action. If this applies to you, you should see a lawyer for help, AND
- ✓ Do not harass or bother your spouse or the children, AND
- ✓ Do not physically abuse or threaten your spouse or the children, AND
- ✓ Do not take the minor children, common to your marriage, out of the State of Arizona for any reasons, without a written agreement between you and your spouse or a Court Order, before you take the minor children out of the State.
- ✓ Do not remove, or cause to be removed, the other party or the minor children of the parties from any existing insurance coverage, including medical, hospital, dental, automobile and disability insurance. Both parties shall maintain all insurance coverage in full force and effect.

STATUTORY REQUIREMENTS: Arizona Law, A.R.S. § 25-315(A) provides:

- 1(a). RESTRICTIONS ON PROPERTY OF THE MARRIAGE: That both parties are enjoined from transferring, encumbering, concealing, selling, or otherwise disposing of any of the joint, common or community property of the parties, except if related to the usual course of business, the necessities of life, or court fees and reasonable attorney fees associated with an action filed under this article, without the written consent of the parties or the permission of the court.
- 1(b). REQUIREMENTS OF BEHAVIOR: That both parties are enjoined from molesting, harassing, disturbing the peace, or committing an assault or battery on, the person of the other party or any natural or adopted child of the parties.
- 1(c). RESTRICTIONS ABOUT YOUR MINOR CHILDREN: That both parties are enjoined from removing any natural or adopted minor child(ren) of the parties, then residing in Arizona, from this state without the prior written consent of the parties or the permission of the court.
- 1(d). RESTRICTIONS ABOUT INSURANCE: That both parties are enjoined from removing, or causing to be removed, the other party or the minor children of the parties from any existing insurance coverage, including medical, hospital, dental, automobile and disability insurance. Both parties shall maintain all insurance coverage in full force and effect.
2. EFFECTIVE DATE OF THIS ORDER: This Order is effective against the person who filed for divorce, annulment, or legal separation (the Petitioner) when the Petition was filed with the court. It is effective against the other party (the Respondent) when it is served on the other party, or on actual notice of the Order, whichever is sooner. This Court Order is effective until a final Decree of Dissolution, Legal Separation, or Annulment is filed or the action is dismissed.

3. ORDER TO PETITIONER: You must serve a copy of this Order upon the Respondent, along with a copy of the Petition for Dissolution, Annulment or Legal Separation, the Summons, and other required court papers.
4. WARNING: This is an official Court Order. If you disobey this Order, the court may find you in contempt of court. You may also be arrested and prosecuted for the crime of interfering with judicial proceedings and any other crime you may have committed by disobeying this Order.
5. LAW ENFORCEMENT: You or your spouse may file a certified copy of this Order with your local law enforcement agency. You may obtain a certified copy from the Clerk of Superior Court that issues this Order. If any changes are made to this Order and you have filed a certified copy of this Order with your local law enforcement agency, you must notify them of the changes. If you are the person that brought this action, you must also file evidence with the law enforcement agency that this Order was served on your spouse.
6. DESCRIPTION OF THE PARTIES:

Petitioner:

Name: _____

Gender: ☐ Male ☐ Female

Height: _____

Weight: _____

Driver's License (last 4 nos.) _____

Date of Birth: _____

Respondent:

Name: _____

Gender: ☐ Male ☐ Female

Height: _____

Weight: _____

Driver's License (last 4 nos.) _____

Date of Birth: _____

GIVEN UNDER MY HAND AND THE SEAL OF THE COURT this _____ day of _____, _____.

CLERK OF SUPERIOR COURT

By: _____,
Deputy Clerk

Person Filing: _____

Address (if not protected): _____

City, State, Zip Code: _____

Telephone: _____

Email Address: _____

ATLAS Number: _____

Lawyer's Bar Number: _____

Representing ☐ Self, without a Lawyer or ☐ Attorney for ☐ Petitioner OR ☐ Respondent

FOR CLERK'S USE ONLY

**SUPERIOR COURT OF ARIZONA
IN**

Petitioner / Party A

Case Number: _____

Respondent / Party B

**NOTICE OF INTENT TO FILE
CONSENT DECREE FOR
DISSOLUTION OF A NON-
COVENANT MARRIAGE**

Petitioner / Party A and Respondent / Party B hereby notify the Court that they intend to proceed using the Summary Consent Decree Process.

We understand this form may only be used at initial filing of our case and with the form called "Petition and Response for Dissolution of a Non-Covenant Marriage" as part of the Summary Consent Decree Process.

Petitioner / Party A Signature

Date

Respondent / Party B Signature

Date

Person Filing: _____

Address (if not protected): _____

City, State, Zip Code: _____

Telephone: _____

Email Address: _____

ATLAS Number: _____

Lawyer's Bar Number: _____

Representing ☐ Self, without a Lawyer or ☐ Attorney for ☐ Petitioner OR ☐ Respondent

For Clerk's Use Only

SUPERIOR COURT OF ARIZONA
IN MARICOPA COUNTY

Case Number: _____

Petitioner/Party A

SUMMARY CONSENT PETITION AND
RESPONSE FOR DISSOLUTION OF A NON-
COVENANT MARRIAGE

Respondent/Party B

Petitioner/Party A and Respondent/Party B Petition the Court and state the following under oath or affirmation:

1. Information About Party A:

Name: _____

Address: _____

Date of Birth: _____

Job Title: _____

Party A has lived in Arizona for _____ years and/or _____ months.

2. Information About Party B:

Name: _____

Address: _____

Date of Birth: _____

Job Title: _____

Party B has lived in Arizona for _____ years and/or _____ months.

3. Information About Our Marriage:

Date of Marriage: _____

City and State, or Country where we were married: _____

The following statements **MUST BE TRUE** for you to use this document and to qualify for divorce in Arizona **AND** you must check the boxes to indicate that the statements are true or your case may not proceed.

- ☐ We do not have a covenant marriage. (If not sure, refer to the Instructions for information).
- ☐ Our marriage is broken beyond repair (“irretrievably broken”) and there is no hope of reconciliation.
- ☐ We have tried to resolve our problems through Conciliation Services or going to Conciliation Services would not work.
- ☐ We do NOT have minor children together. OR ☐ We DO have minor children and this Court has jurisdiction to determine parenting time and authority for legal decision-making over minor child(ren) common to the parties because the minor child(ren) has/have lived with Party A or Party B in Arizona for at least the past 6 months.

4. 90-Day Requirement: (This statement **MUST** be true before you can file for divorce in Arizona.)

☐ Party A OR ☐ Party B has lived in Arizona (OR has been stationed in Arizona while a member of the Armed Forces), for at least 90 days before we filed this action.

5. Names, birth dates and addresses of all living children (natural or adopted) that are common to the parties:

Name(s) of Minor Child(ren)	Date(s) of Birth
_____	_____
_____	_____
_____	_____
_____	_____

Address(es) of Minor Child(ren):

- ☐ Information for additional children and/or addresses listed on attached page made part of this document by reference.

☐ Party A OR ☐ Party B is pregnant.

6. Statements and Waivers

The parties make the following statements.

- Formal service of process is waived and all issues are resolved by agreement pursuant to A.R.S. § 25-314.01.
- Party A and Party B hereby waive the conciliation court provision pursuant to A.R.S. § 25-381.01.
- Party A and Party B hereby waive the right to a default pursuant to Rule 44 A.R.F.L.P.
- By signing and filing this “Petition and Response,” Respondent/Party B voluntarily appears in this matter and no Summons will be issued or served. This voluntary appearance has the same effect as if a Summons had been issued and served pursuant to Rule 40 A.R.F.L.P.

- e. Should either party wish to no longer enter into the Consent Decree, they must file a motion with the Court, within sixty (60) days of filing the Notice of Intent and Petition and Response.
- f. This Petition and Response and the attached Consent Decree constitute the Petition for Dissolution as well as the required Response pursuant to Rule 23 A.R.F.L.P.

7. Written Agreement:

Party A and Party B have reached an agreement that includes orders about spousal maintenance, division of property and debt, and as applicable, where the children will live, legal decision-making, parenting time, and child support. A copy of the written agreement is attached as Attachment 1 in the form of a Consent Decree.

8. Joint Requests to the Court: The parties jointly request the Court issue Orders for the following:

- A. Dissolve our marriage and return each party to the status of a single person.
- B. Enter orders as detailed on the attached Consent Decree regarding:
 - 1. Restoration of name (if applicable);
 - 2. Paternity (if applicable);
 - 3. Minor children (if applicable);
 - 4. Child Support (if applicable);
 - 5. Spousal Maintenance (if applicable);
 - 6. Community Property;
 - 7. Community Debts;
 - 8. Separate Property;

9. Separate Debts; and

10. Other orders (if applicable).

Petitioner/Party A Oath or Affirmation and Verification

I swear or affirm my statements in this Petition and Response and my requests to the Court are true and correct under penalty of perjury.

Petitioner/Party A Signature

Date

State of _____

County of _____

Subscribed and sworn to or affirmed to me this date _____ by

_____.

Notarial Officer

(Notarial Officer's Stamp or Seal)

Respondent/Party B Oath or Affirmation and Verification

I swear or affirm my statements in this Petition and Response and my requests to the Court are true and correct under penalty of perjury.

Respondent/Party B Signature

Date

State of _____

County of _____

Subscribed and sworn to or affirmed to me this date _____ by

_____.

Notarial Officer

(Notarial Officer's Stamp or Seal)

Person Filing: _____

Address (if not protected): _____

City, State, Zip Code: _____

Telephone: _____

Email Address: _____

Lawyer's Bar Number: _____

Representing ☐ Self, without a Lawyer OR ☐ Attorney for ☐ Petitioner OR ☐ Respondent

For Clerk's Use Only

SUPERIOR COURT OF ARIZONA
IN MARICOPA COUNTY

Name of Petitioner/Party A

Case No. _____

NOTICE OF LODGING
(ARFLP Rules 30; 43.1; 44.1; 45)

Name of Respondent/Party B

Assigned to: _____
Judicial Officer's Name

PLEASE TAKE NOTICE that, pursuant to the Arizona Rules of Family Law Procedure,

☐ Petitioner/Party A and/or

☐ Respondent/Party B and/or

☐ Third Party/Party C

Lodge the following document(s) with the Court for signature and entry:

Document: _____

Document: _____

Document: _____

Document: _____

Document: _____

Document: _____

Case Number: _____

Document: _____

Document: _____

Document: _____

Document: _____

Document: _____

Signature of Party A or Party A's Attorney

Date

Signature of Party B or Party B's Attorney

Date

Petitioner/Party A: _____

Address (if not protected): _____

City, State, Zip Code: _____

Telephone: _____

Email Address: _____

Lawyer's Bar Number: _____

Representing ☐ Self, without a Lawyer OR ☐ Attorney for ☐ Petitioner OR ☐ Respondent

For Clerk's Use Only

Respondent/Party B: _____

Address (if not protected): _____

City, State, Zip Code: _____

Telephone: _____

Email Address: _____

Lawyer's Bar Number: _____

Representing ☐ Self, without a Lawyer OR ☐ Attorney for ☐ Petitioner OR ☐ Respondent

SUPERIOR COURT OF ARIZONA
IN MARICOPA COUNTY

Name of Petitioner/Party A

Case Number: _____

CONSENT DECREE OF
☐ DISSOLUTION (DIVORCE)
☐ LEGAL SEPARATION
of a Non-Covenant Marriage
with no minor children

Name of Respondent/Party B

THE COURT FINDS:

1. This case has come before this court for a final Decree of Dissolution of Marriage (Divorce) or Legal Separation. The Court has taken all testimony needed to enter a Decree, or the Court has determined testimony is not needed to enter the Decree. This Consent Decree states the terms of the Parties' agreement.
2. This Court has jurisdiction over the parties under the law.

3. Where it has the legal power and where it is applicable to the facts of this case, this Court has considered, approved, and made orders relating to issues of spousal maintenance (alimony), and the division of property and/or debts.
4. The Parties agree to proceed by consent.
5. The provisions of this Decree are fair and reasonable under the circumstances, and the division of property and debt is fair and equitable.
6. At least 60 days have passed between the time Party B was served with the summons and complaint and the time the Parties filed for this Decree.
7. Arizona Residency: The requirements of A.R.S. § 25-312 for dissolution of marriage, or A.R.S. § 25-313 for legal separation have been met: If this is an action for legal separation, at the time this action was filed, Party A and/or Party B was domiciled in Arizona or was stationed in Arizona while a member of the United States Armed Forces. If this is an action for dissolution of marriage (divorce), Party A and/or Party B was domiciled or stationed in Arizona for more than 90 days.
8. Conciliation Court. The provisions relating to the Conciliation Court either do not apply or have been met.
9. Pregnancy and Paternity:
 - ☐ Party A is not pregnant.
 - ☐ Party A is pregnant and Party B ☐ is ☐ is not a parent of the child.
 - ☐ Party B is not pregnant.
 - ☐ Party B is pregnant and Party A ☐ is ☐ is not a parent of the child.
10. Irretrievably Broken or Separate and Apart. If dissolution, the marriage is irretrievably broken or if legal separation, the parties desire to live separate and apart.
11. Covenant Marriage. This is a non-covenant marriage.
12. Protective Orders: The effect, if any, of this Consent Decree on any existing protective orders is:

13. Community Property and Debt: (Select one.)

☐ The parties did not acquire any community property or debt during the marriage,

OR

☐ The parties have agreed to a division of community property and/or debt as evidenced by their signatures on "Exhibit A" attached to and incorporated into this Decree. All community property and debt is divided pursuant to this Decree.

14. Separate Property and Debt: (Select one.)

☐ The parties did not acquire any separate property or debt during the marriage,

OR

☐ There IS an agreement as to division of separate property and debt; all separate property and debt is divided pursuant to this Decree.

15. Spousal Maintenance/Support: (Select one.)

☐ Neither party is entitled to an award of Spousal Maintenance/Support,

OR

☐ A party is entitled to an award of Spousal Maintenance/Support for the reason that:

☐ Party A, OR ☐ Party B

☐ Lacks sufficient property, including property apportioned to the spouse, to provide for that spouse's reasonable needs.

☐ Lacks earning ability in the labor market that is adequate to be self-sufficient.

☐ Is the parent of a child whose age or condition is such that the parent should not be required to seek employment outside the home.

☐ Has made a significant financial or other contribution to the education, training, vocational skills, career, or earning ability of the other spouse or has significantly reduced that spouse's income or career opportunities for the benefit of the other spouse.

☐ Had a marriage of long duration and is of an age that may preclude the possibility of gaining employment adequate to be self-sufficient.

If spousal maintenance is to be awarded, the parties further agree:

- ☐ The parties have reviewed the Spousal Maintenance Guidelines and acknowledge that the amount of Spousal Maintenance awarded is appropriate and just.

AND (Select one of the following)

- ☐ Spousal maintenance award shall be modifiable in accordance with Arizona law,

OR

- ☐ That the circumstances of their futures are unknown, but each desires that the spousal maintenance awarded by their agreement, not be modifiable in the future for any reason. The parties understand that if there is a change in their economic circumstances in the future during the term of the spousal maintenance award, neither party shall have the right to seek nor shall the court have the authority to modify the amount or duration of the award.

THE COURT ORDERS:

1. DISSOLUTION of Marriage:

- ☐ The marriage of the parties is dissolved, and the parties are restored to the legal status of single persons.

OR

LEGAL SEPARATION:

- ☐ The parties are legally separated.

2. NAME RESTORATION: (In a divorce case if one or both parties changed their last names as a result of the marriage, either spouse may (optionally) have his/her name legally restored to a pre-marital last name.)

- ☐ Party A's name is restored to: _____ (Put only the last name here.)

Party A's date of birth is _____.

- ☐ Party B's name is restored to: _____ (Put only the last name here.)

Party B's date of birth is _____.

3. ENFORCEMENT OF TEMPORARY ORDERS:

- ☐ Not applicable. (SKIP TO question 4)

A. Temporary Orders:

☐ All obligations ordered to be paid by the parties in Temporary Orders dated (fill in dates of all temporary orders here) _____
_____ are satisfied in full.

OR

☐ Judgment is awarded against the party with the obligation up to the amount due and owing as of the date of this Decree, with the highest legal interest allowed by law, for the total amount of \$ _____.

B. Protective Orders: This Consent Decree has the following effect on any existing protective orders (See # 12 above): _____

4. SPOUSAL MAINTENANCE/SUPPORT:

A. ☐ Neither party shall pay spousal maintenance/support (alimony) to the other party, (SKIP TO question 5)

OR

B. ☐ Party A OR ☐ Party B is ordered to pay to the other party the sum of \$ _____ per month in spousal maintenance/support beginning the first day of the month after this Decree is signed. Each payment shall be made by the first day of each month after that and shall continue until the receiving party is remarried or deceased or until _____. (date)

All payments shall be made through the Support Payment Clearinghouse, PO Box 52107, Phoenix, Arizona 85072-7107 by Income Withholding Order, until all required payments have been made under this Decree. All spousal maintenance payments are governed by the applicable federal and state tax laws. It shall terminate upon the death of either party or remarriage of receiving party.

Spousal Maintenance Modification:

☐ The spousal maintenance award shall be modifiable in accordance with Arizona law,

OR

☐ The spousal maintenance award shall NOT be modifiable for any reason.

FINANCIAL INFORMATION EXCHANGES: Until such time spousal maintenance would end under the orders in this Consent Decree, the parties shall exchange financial information (tax returns, spousal affidavits, earning statements and/or other related financial statements) every 24 months or as follows:

5. PROPERTY AND DEBTS: (Select any that apply)

- A. ☐ Party A is ordered to pay all community debts unknown to Party B, AND
- ☐ Party B is ordered to pay all community debts unknown to Party A, AND
- ☐ Each party is ordered to pay his or her community debts starting from the following date: _____.
- B. ☐ Each party is assigned his or her separate property and Party A must pay his/her separate debt, and Party B must pay his/her separate debt.
- C. ☐ Other orders and relief relating to property or debt are contained in Exhibit A, which is attached and incorporated into this Decree.
- D. ☐ This Decree can be used as a transfer of title and can be recorded. Parties shall sign all documents necessary to complete all transfer of title ordered in this Decree, such as motor vehicles, houses, and financial institution accounts. The parties shall transfer all real and personal property as described in Exhibit A to the other party on or before (date) _____ by 5:00 p.m.

If the party required to transfer the property has not transferred the property to the party entitled to receive the property on or before the date and time listed above, the party entitled to receive the property is entitled upon application to a Writ of Assistance or Writ of Execution to be issued by the Clerk of Superior Court commanding the sheriff to put him or her in possession of the property.

Other orders and relief relating to property or debt, if any, are contained in "Exhibit A," which is attached and incorporated into this Decree.

6. TAX RETURNS:

- ☐ Each party shall give the other party all necessary documentation to file all tax returns. For previous calendar years, pursuant to IRS rules and regulations, the parties will file:

☐ Joint federal and state income tax returns and hold each other harmless from half of all additional income taxes if any and other costs, and each will share equally in any refunds,

OR

☐ Separate federal and state income tax returns.

- ☐ This calendar year and continuing thereafter, each party will file separate federal and state income tax returns.

7. QUALIFIED DOMESTIC RELATIONS ORDER (QDRO):

☐ A QDRO is not necessary.

☐ A QDRO is submitted with the decree, OR

☐ A QDRO will be submitted to the Court as soon as practicable as or not later than _____ (date).

The Court shall retain jurisdiction over the subject matter of the QDRO.

8. OTHER ORDERS: (List any other orders.)

9. FINAL APPEALABLE ORDER: There are no further matters that remain pending before the court and this judgment is a final order under Rule 78(c) of the Arizona Rules of Family Law Procedure.

Date

Judicial Officer

SIGNATURES OF BOTH PARTIES UNDER OATH OR AFFIRMATION

By signing below, in the presence of a Deputy Clerk of Superior Court or Notarial Officer, I swear or affirm that everything in this document is true and correct to the best of my knowledge, information and belief, including the following:

1. Non-Covenant Marriage. We do not have a covenant marriage.
2. Right to trial is waived. I understand that by signing this Consent Decree, I am waiving my right to a trial before a judge.
3. No duress or coercion. Complete agreement. I am not under any force, threats, duress, coercion, or undue influence from anyone, including the other party, to sign this Consent Decree. This Decree with any attachments that I have signed is our full agreement. I have not agreed to something different from what is stated in writing in the Decree.
4. Legal advice. I understand that even if I am representing myself without an attorney, I have the right to be represented by an attorney. I have the right to call an attorney and get legal advice before I sign this Consent Decree.
5. Irretrievably broken marriage. I agree that our marriage is irretrievably broken. There is no reasonable prospect of reconciliation [or We desire to live separate and apart if this is a Legal Separation case].
6. Division of property. The agreement about division of property and debt attached as “Exhibit A,” signed by both parties and made part of this document by reference, is fair and equitable.

This signature page belongs to the form titled “Consent Decree of Dissolution (Divorce) or Legal Separation of a Non-Covenant Marriage with no minor children” and cannot be used with any other documents.

Signatures

Petitioner/Party A:

Respondent/Party B:

Date: _____

Date: _____

Signature: _____

Signature: _____

STATE OF _____

STATE OF _____

COUNTY OF _____

COUNTY OF _____

Subscribed and sworn to or affirmed before me

this: _____ (date)

by _____.

Subscribed and sworn to or affirmed before me

this: _____ (date)

by _____.

Notarial Officer

Notarial Officer

(Notarial Officer’s Stamp or Seal)

(Notarial Officer’s Stamp or Seal)

If either party is represented by an attorney, the attorney must sign.

Date

Approved by Party A’s Attorney

Date

Approved by Party B’s Attorney

EXHIBIT A: PROPERTY AND DEBTS

1. Division of Community Property: (property acquired during the marriage)

- ☐ Award each party the furniture, furnishings, artwork, collectibles, appliances, cookware, and related items of personalty in his/her possession.
- ☐ Community property is awarded to each party as follows:

2. List of Community Property: (Be very specific in your description of the property.)

AWARD TO:
Party A Party B

Household Furniture and Appliances: (Be specific)

_____	☐	☐
_____	☐	☐
_____	☐	☐
_____	☐	☐
_____	☐	☐
_____	☐	☐
_____	☐	☐

Video: TV /DVD / DVR/ VCR, etc: (Be specific)

_____	☐	☐
_____	☐	☐
_____	☐	☐
_____	☐	☐

Audio: Stereo/ Radio (Household or Portable): (Be specific)

_____	☐	☐
_____	☐	☐
_____	☐	☐

AWARD TO:
Party A Party B

Computers and Related Equipment: (Be specific)

_____	☐	☐
_____	☐	☐
_____	☐	☐

Motor Vehicles: (Be specific)

1. Year, Make, Model: _____ ☐ ☐

Last 4 digits of VIN # _____

2. Year, Make, Model: _____ ☐ ☐

Last 4 digits of VIN # _____

3. Year, Make, Model: _____ ☐ ☐

Last 4 digits of VIN # _____

Cash, bonds of \$ _____ ☐ ☐

Other: _____ ☐ ☐

Other: _____ ☐ ☐

Other: _____ ☐ ☐

Other: _____ ☐ ☐

Other: _____ ☐ ☐

☐ Continued on attached page.

3. Division of Retirement, Pension, Deferred Compensation:

Warning: You should see a lawyer about your retirement, pension, deferred compensation, 401k plans and/or benefits. If you do not see a lawyer regarding these assets, you risk losing any interest you have in these plans and/or benefits. There are certain documents the plan administrator must have. Only a lawyer can help you prepare these documents.

☐ Neither party has a retirement, pension, deferred compensation, 401K Plan and/or benefits.

OR

☐ Award each party his/her interest in any and all retirement benefits, pension plans, or other deferred compensation described as:

OR

☐ Each party waives and gives up his/her interest in any and all retirement benefits, pension plans, or other deferred compensation of the other party:

4. Division of Real Property: (land and buildings) Section A is for one piece of property. Section B is for another, separate property.

A. Real property located at (address) _____

The legal description of this property, as quoted from the DEED to the property* is:

* If you do not provide a correct legal description, you may have to come back to court to amend the Decree to include the correct legal description.

The real property ("A") described above is awarded as the sole and separate property of:

☐ Party A or ☐ Party B

OR

☐ Shall be sold and the proceeds divided as follows:

_____ % or \$ _____ to Party A

_____ % or \$ _____ to Party B

B. Real property located at (address) _____

The legal description of this property, as quoted from the DEED to the property* is:

* If you do not provide a correct legal description, you may have to come back to court to amend the Decree to include the correct legal description.

The real property ("B") described above is awarded as the sole and separate property of:

☐ Party A or ☐ Party B

OR

☐ Shall be sold and the proceeds divided as follows:

_____ % or \$ _____ to Party A

_____ % or \$ _____ to Party B

☐ Continued on attached page(s).

5. Division of Community Debt: (Debts incurred during the marriage) (You should see a lawyer about how to divide secured and unsecured debts.)

Community debts shall be divided as follows:

Creditor Name	Amount Owed	Amount to be paid by Party A	Amount to be paid by Party B
	\$	\$	\$
	\$	\$	\$
	\$	\$	\$
	\$	\$	\$
	\$	\$	\$
	\$	\$	\$
	\$	\$	\$
	\$	\$	\$
	\$	\$	\$

☐ Continued on attached page.

6. ☐ Any debts or obligations incurred by either party before the date of separation, that are not identified in the list above or attached, shall be paid by the party who incurred the debt or obligation, and that party shall indemnify and hold the other party harmless from such debts.
7. Separate Property: (Property acquired before the marriage or by gift or bequest to one party.)

Property recognized as the separate property of Party A or Party B, is assigned below:

Description	Value	To Party A	To Party B
	\$	☐	☐
	\$	☐	☐
	\$	☐	☐
	\$	☐	☐
	\$	☐	☐
	\$	☐	☐

☐ Continued on attached page.

8. Separate Debt: (Debt acquired before the marriage.)

Debt recognized as the separate debt of Party A or Party B, is assigned below:

Creditor Name	Debt Amount	Party A Pays	Party B Pays
	\$	☐	☐
	\$	☐	☐
	\$	☐	☐
	\$	☐	☐
	\$	☐	☐
	\$	☐	☐

☐ Continued on attached page.

Signature of Both Parties (for Consent Decree)

This “Exhibit A” represents the agreement of the parties as to the division of property and debt. The terms of the agreement are fair and equitable and have been reached free of coercion, duress, or threat of force.

By signing below, each of us states to the court under penalty of perjury that we have read and understand this document, and that the information contained in the document is true and correct to the best of our individual knowledge and belief.

Party A’s Signature

Date

Party B’s Signature

Date

If either party is represented by an attorney, the attorney(s) must sign:

Party A’s Attorney

Date

Party B’s Attorney

Date

**NOTICE OF YOUR RIGHTS ABOUT HEALTH INSURANCE COVERAGE WHEN
A PETITION FOR DISSOLUTION (DIVORCE) IS FILED
(A.R.S. §20-1377 and §20-1408)**

Petitioner/Party A: _____

Case #: _____

Respondent/Party B: _____

Warning: This is an important legal notice. Your rights to health insurance coverage could be affected after your divorce is final. Read this notice carefully. If you do not understand this notice, you should call an attorney for advice about your legal rights and obligations.

IMPORTANT INFORMATION IF YOU ARE ON YOUR SPOUSE'S INSURANCE PLAN: When a Petition for Dissolution of Marriage (papers for a divorce decree) is filed, you and/or your children may continue to be covered under your spouse's health insurance policy. Arizona law allows the dependent spouse and/or children to continue to be covered, but you must take some steps to protect your rights.

WHAT INSURANCE COVERAGE APPLIES TO YOU, AND HOW TO GET IT: If you are covered by your spouse's health insurance, and you want to continue to be covered after the divorce is final, you must contact the insurance company as soon as possible, and you must start to pay the monthly insurance premium within 31 days of the date the insurance would otherwise stop.

If you decide you want to be covered, the insurer can choose whether to continue coverage under the current policy, or to change the policy to your name. If the policy is changed to your name, it is called a "converted"; policy. If the policy is converted by the insurer, the insurer must provide you the same or the most similar level of coverage available, unless you ask for a lower level of coverage.

WHAT COVERAGE APPLIES TO YOUR CHILDREN: If you choose to continue coverage as a dependent spouse, you can also choose to continue coverage for your dependent children if you are responsible for their care or support.

PREEXISTING CONDITIONS OR EXCLUSIONS FROM INSURANCE COVERAGE: Whether the insurance is continued or converted, the insurance must be provided to you without proof of insurability and without exclusions for coverage other than what was previously excluded before the insurance was continued or converted.

LIMITS ON RIGHTS TO INSURANCE COVERAGE FOR YOU AND YOUR CHILDREN: You may not be entitled to continued or converted coverage if you are eligible for Medicare or for coverage by other similar types of insurance which together with the continued coverage would make you over-insured. However, dependent children of a person who is eligible for Medicare may be covered by a continuance or a conversion. If you have questions about coverage, check with the insurer and/or the spouse's employer.

OTHER OPTIONS FOR COVERAGE: Divorce is considered to be a life changing event that, under the federal Consolidated Omnibus Budget Reconciliation Act ("COBRA"), may qualify you and/or your dependents with the right to continue health coverage under the spouse's group plan, if the employer has 20 or more employees. To find out more about your COBRA rights, you can visit the United States Department of Labor ("USDOL") website at <https://www.dol.gov/> and search for COBRA, or you can call the USDOL at 1-866-487-2365. Divorce is also a life-changing event under the federal Affordable Care Act, which qualifies you and/or your dependents for a special enrollment period to obtain an individual health insurance policy regardless of any health conditions. Additional information is available at <https://www.healthcare.gov/> or by calling 1-800-318-2596.

Warning to the spouse filing the petition for dissolution (Divorce): This Notice must be served on your spouse together with the Petition for Dissolution, the Summons, and the Preliminary Injunction.

Person Filing: _____

Address (if not protected): _____

City, State, Zip Code: _____

Telephone: _____

Email Address: _____

ATLAS Number: _____

Lawyer's Bar Number: _____

Representing ☐ Self, without a Lawyer OR ☐ Attorney for ☐ Petitioner OR ☐ Respondent

For Clerk's Use Only

SUPERIOR COURT OF ARIZONA
IN MARICOPA COUNTY

Name of Petitioner/Party A

Case Number: _____

NOTICE REGARDING CREDITORS

Name of Respondent/Party B

Arizona law requires all actions for Divorce, Annulment, or Legal Separation to include this Notice and for the person filing for Divorce, Annulment, or Legal Separation to serve this Notice on the other party. (ARS § 25-318(H)).

You and your spouse are responsible for community debts. In your property settlement agreement or decree of dissolution, annulment, or legal separation, the court may assign responsibility for certain community debts to one spouse or the other. Please be aware that a court order that does this is binding on the spouses only and does not necessarily relieve either of you from your responsibility for these community debts. These debts are matters of contract between both of you and your creditors (such as banks, credit unions, credit card issuers, finance companies, utility companies, medical providers and retailers). Since your creditors are not parties to this court case, they are not bound by court orders or any agreements you and your spouse reach in this case. On request, the court may impose a lien against the separate property of a spouse to secure payment of debts that the court orders that spouse to pay.

Contact creditors: You may want to contact your creditors to discuss your debts as well as the possible effects of your court case on your debts. To assist you in identifying your creditors, you may obtain a copy of your spouse's credit report by making a written request to the court for an order requiring a credit reporting agency to release the report to you. Within thirty (30) days after receipt of a request from a spouse who is party to a divorce or legal separation, which includes the court and cause number of the action, creditors are required, by law, to

Case Number: _____

provide information as to the balance and account status of any debts for which you or your spouse may be liable to the creditor. You may wish to use the following form, or one that is similar, to contact your creditors:

Warning: If you do not understand this notice, you should contact an attorney for advice about your legal rights and obligations.

The following page contains a sample form you may choose to mail to creditors to get information about debts owed by you or your spouse. It is not a required form.

Do not file the next page with the court.

REQUEST FOR ACCOUNT INFORMATION FROM CREDITORS

You may use this form to request information about debt owed by you or your spouse.
If so, send to the creditor. **DO NOT FILE THIS PAGE WITH THE COURT.**

Date: _____

Creditor's Name: _____

Creditor's Address: _____

Regarding: Superior Court of Arizona in Maricopa County

Case Name: _____

Case Number: _____

Within thirty (30) days after receipt of this notice, you are requested to provide the balance and account status of any debt identified by account number for which the requesting party may be liable to you.

Information About Debtors/Spouses:

Your Name: _____

Your Address: _____

Your Phone Number: _____

Your Spouse's Name: _____

Your Spouse's Address: _____

Information About the Account:

Account Number(s): _____

If you have any questions or if I can be of further assistance, please feel free to contact me.

Sincerely,

Your name: _____

Your signature: _____